Customs and Excise (Suspension) (Amendment) Regulations, 2023 (No. 270)

IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion, in terms of section 235 as read with section 120 of the Customs and Excise Act [*Chapter 23:02*], has made the following regulations:—

1. These regulations may be cited as the Customs and Excise (Suspension) (Amendment) Regulations, 2023 (No. 270).

2. The Customs and Excise (Suspension) Regulations, 2003, published in Statutory Instrument 257 of 2003, are amended by the repeal of section 9K and the substitution with the following—

"Suspension of duty on specified motor vehicles imported by safari operators"

9K With effect from the 1st January, 2024 and for a period of two years up to 31st December, 2025, duty is suspended on specified motor vehicles imported by safari operators under the tariff codes as shown in the Second Schedule.

Interpretation

1. In this section—

"exclusive use in the safari operator business" means the specified motor vehicles shall be used entirely for the purposes of the safari operator business, other than as a benefit to the employees, owner, directors or beneficial owners;

"safari operator" means a person or organisation—

(a) registered with the Zimbabwe Tourism Authority and the Safari Association of Zimbabwe for a period of not less than two years; or

(b) approved by the Minister responsible for finance.

"specified new motor vehicle" means a new motor vehicle imported or a new motor vehicle taken out of bond which is listed in the Second Schedule below.

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Approval safari operators

2. (1) The Minister responsible for Finance, in consultation with the Minister responsible for Tourism shall approve a suspension of duty in respect of specified new motor vehicles imported for exclusive use in the safari operators business.

(2) The beneficiaries shall be limited to import a maximum of five motor vehicles *per annum*.

(3) The Commissioner may not grant suspension of duty to an approved safari operator on the basis of non-compliance with section 34C of the Revenue Authority Act [*Chapter 23:11*].

Clearance of specified new motor vehicles

3. (1) Any specified new motor vehicle to be entered under a suspension of duty provided for in this section shall be entered for consumption at the port of entry nearest to the premises of the safari operator.

(2) A safari operator shall, when effecting entry on importation, or on removal from bond of a specified new motor vehicle under a suspension of duty, submit with the relevant bill of entry, a declaration signed by him or her, to the effect that the specified new motor vehicle is to be used solely in the safari operator's business.

Transfer of imported goods to another place of business

4. The Commissioner may authorise the transfer of the specified new motor vehicles whose duty had been suspended, to another place of business of the same safari operator.

Disposal of goods where duty has been suspended

5. (1) Subject to subsections (2) and (3) a safari operator shall not dispose, within five years of their importation, of any specified new motor vehicle cleared under suspension unless—

(a) written authority of the Commissioner is obtained; or

(b) payment of the duty suspended in accordance with this section has been made.

(2) The Commissioner may authorise the disposal of a specified new motor vehicle on payment of such duty, not exceeding the amount of duty suspended, as he or she deems fit, if, in his or her opinion**,** the specified new motor vehicle cannot be economically used for the purpose for which it was entered under suspension.

(3) Duty suspended on a specified new motor vehicle, which would have been accidentally destroyed before being used in the safari operator's business may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent its destruction.

Requirements to be submitted to the Commissioner for eligibility to suspension of duty

6. (1) Specified new motor vehicles shall be admitted under suspension of duty only if the safari operator has furnished to the satisfaction of the Commissioner—

(a) a complete specification of each model of specified new motor vehicle; and

(b) a complete suspension of duty form specified in the First Schedule; and

(c) a valid tax clearance certificate and proof of registration with the Zimbabwe Revenue Authority.

(2) Specified new motor vehicles listed in the Second Schedule below shall be eligible for suspension if imported or taken out of bond under the tariff heading indicated opposite thereto.

FIRST SCHEDULE

SUSPENSION OF DUTY FORM

Form SR 2



MINISTRY OF FINANCE, ECONOMIC DEVELOPMENT AND INVESTMENT PROMOTION
Mgandane Dhlodhlo Complex
Cnr Samora Machel Avenue/ Simon V. Muzenda Street
Harare
Telephone: 796624/794571/2/3/5/6/7
Fax: 263-04-796563
Private Bag 7705, Causeway, Harare
Zimbabwe

APPLICATION FORM FOR SUSPENSION OF DUTY ON MOTOR VEHICLES IMPORTED BY A safari operator

This form must be completed in block capitals using blue or black ink.

Please complete all questions as indicated.

Please ensure you submit certified copies of Tax Clearance Certificates, Certificate of Incorporation and proof of registration with Zimbabwe Safari Operator Authority (ZTA) and Zimbabwe Council of Safari Operator

SAFARI OPERATOR DETAILS

1. Name of Company & Physical Address

2. Business Telephone Number

3. Mobile Telephone Number

4. e-Mail Address

5. How long has the operator been in tourism business?

6. Provide details of the Safari Operator's activities

7. Have you benefited from the suspended duty on motor vehicle before? Tick the relevant

NO ☐ YES ☐

8. If 'yes' please provide details of how the suspended duty was utilized.

9. Have your application for suspension of duty been denied in the past?

NO ☐ YES ☐

10. If "Yes' please provide details

11. Is the operator involved in any other business activities? Put a tick in the relevant box.

NO ☐ YES ☐

12. If answer to the above question is yes, please provide details

13. Please provide brief details of the motor vehicle being applied for suspension of duty

14. Estimated cost of motor vehicle to be to be imported under suspension of duty

US$

15. Please indicate the estimated amount of duty to be suspended.

US$

16. Average monthly after tax income from Safari Operator

US$

17. Any other source of income business

NO	YES

18. If 'yes' please provide full details

19. Average monthly expenses

US$

20. Has the Safari Operator been convicted of economic crimes

NO	YES

21. If 'yes' please provide details

Declaration

I hereby apply for suspension of duty on new motor vehicle imported or taken out of bond (*please delete the inapplicable***) for the exclusive use in my tourism business. The information I have given is complete and true to the best of my knowledge.**

I am also aware that my application will be automatically disqualified and may be banned from making future applications if I use a false document, lie or withhold relevant information. I declare that the documents that I have supplied with this application are genuine and the statements that I have made with this application are truthful. I understand that the relevant authorities may make reasonable checks to confirm the accuracy and authenticity of evidence I have provided and documents I have submitted with this application.

I declare that the information given on this form is correct to the best of my knowledge and belief. I also consent to the processing of information provided by me by the relevant authority.

22. Applicant's Name (in full)	23. Designation

24. Applicant's Signature	25. Date	26. Stamp

SAFARI OPERATORS ASSOCIATION OF ZIMBABWE (SOAZ)

27. Name of Applicant with SOAZ

28. The applicant is registered

NO ☐ YES ☐

29. If 'yes' please indicate the number of years the Applicant has been registered with SOAZ

30. The applicant has provided a valid Tax Clearance Certificate

NO ☐ YES ☐

31. The company's business qualify under safari activities

NO ☐ YES ☐

32. Application for suspension of duty is

Recommended ☐ Not Recommended ☐

33. Remarks for recommendation/not recommending.

34. Name (in full)

35. Designation

36. Signature

37. Date

38. Stamp

ZIMBABWE SAFARI OPERATOR AUTHORITY

39. Name of Applicant with ZTA

40. The applicant is registered

NO

YES

41. If 'yes' please indicate the number of years the Applicant has been registered with ZTA

42. The applicant has provided a valid Tax Clearance Certificate

NO

YES

43. The company's business qualify under tourism activities

NO

YES

44. Application for suspension of duty is

Recommended

Not Recommended

45. Remarks for recommendation/not recommending.

46. Name (in full)

47. Designation

48. Signature | 49. Date | 50. Stamp

MINISTRY OF TOURISM & HOSPITALITY INDUSTRY

51. Name of Applicant

52. The applicant has provided all the requisite Documents

NO ☐ YES ☐

53. All the equipment to be imported qualify for exclusive use in hotel modernisation, refurbishment and expansion

NO ☐ YES ☐

54. If 'no', indicate/specify the equipment that do not qualify

55. Application for suspension of duty is

Recommended ☐ Not Recommended ☐

56. Remarks for recommendation/not recommending.

57. Name (in full) | 58. Designation

59. Signature | 60. Date | 61. Stamp

MINISTRY OF FINANCE, ECONOMIC DEVELOPMENT AND INVESTMENT PROMOTION

62. Application for suspension of duty is

Recommended | Not Recommended

63. Remarks for recommendation/not recommending.

64. Name (in full) | 65. Designation

66. Signature ..... | 67. Date..... | 68. Stamp

SECOND SCHEDULE

SPECIFIED NEW MOTOR VEHICLES ELIGIBLE FOR SUSPENSION OF DUTY ON IMPORTATION BY SAFARI OPERATORS

Tariff Heading	Description of Goods
8704.21.40	Of a payload exceeding 800kg but not exceeding 1400kg but does not include models that are assembled by the local industry.
8704.21.90	Other (exceeding 1400kg but not exceeding 5000kg) but does not include models that are assembled by the local industry.
8704.31.40	Of a payload exceeding 800kg but not exceeding 1400kg but does not include models that are assembled by the local industry.
8704.31.90	Other (exceeding 1400kg but not exceeding 5000kg) but does not include models that are assembled by the local industry.